ELIZABETH II

1970 CHAPTER xi

An Act to confer further powers on the mayor, aldermen and burgesses of the county borough of Bolton in relation to the finances of the borough; to make further provision for the local government and improvement of the borough; and for other purposes.

[15th May 1970]

WHEREAS the borough of Bolton (hereinafter referred to as " the borough ") is a county borough under the management and local government of the mayor, aldermen and burgesses of the borough (hereinafter referred to as " the Corporation "):

And whereas it is expedient that further and better provision should be made with reference to the finances and the local government and improvement of the borough and that the powers of the Corporation in regard thereto should be enlarged and extended as in this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

1933 c. 51.

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short title.

1. This Act may be cited as the Bolton Corporation Act 1970.

Interpretation.

2.—(1) In this Act, unless the subject or context otherwise requires—

" the Act of 1933 " means the Local Government Act, 1933;

" the borough " means the county borough of Bolton;

" the Corporation " means the mayor, aldermen and burgesses of the borough acting by the council ;

" the council " means the council of the borough;

" enactment " includes an enactment in this Act or in any general or local Act and any order, byelaw, scheme or regulation for the time being in force within the borough;

" industrial building " has the same meaning as in the Local Employment Act, 1960;

1960 c. 18.

" statutory undertakers " means any company, body or person authorised by an Act of Parliament or order having the force of an Act to supply electricity, gas or water.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

Power to raise money by bills.

3.—(1) In addition to the modes of borrowing prescribed by the Act of 1933, the Corporation may raise money—

(*a*) for any purpose for which the Corporation are authorised to borrow;

(*b*) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Corporation may properly be applied;

by means of bills (to be called " Bolton Corporation bills " and in this section referred to collectively as " bills " and separately as " a bill "), subject to and in accordance with the following provisions:—

(i) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:

(ii) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:

(iii) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Corporation may determine:

(iv) Bills shall be issued under the authority of a resolution passed by the council and shall bear the signature of the treasurer of the borough or of some other person authorised by the council:

(v) The Corporation may make regulations providing for—

(A) the preparation and form and the mode of issue, payment and cancellation of bills;

(B) the issue of a new bill in lieu of one defaced, lost or destroyed;

(C) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills;

(D) the giving of a proper discharge on the payment of a bill; and

(E) the amendment or revocation of any regulations previously made or deemed to have been made under this paragraph:

(vi) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:

(vii) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—

(A) the sum of one million pounds; or

(B) one-fifth of the estimated gross rate income of the borough during the then current financial year;

whichever is the greater:

(viii) Subject to the provisions of the last preceding paragraph the Corporation may renew a bill at maturity:

(ix) The Corporation may borrow for the purpose of repaying the principal money raised by bills, but except as aforesaid any power of the Corporation to borrow shall be suspended to the extent of the amount which has been raised for capital purposes by the issue of bills.

(2) In this section " gross rate income " means the gross rate income as used in the determination of the product of a rate of one penny in the pound under rules made pursuant to section 113 of the General Rate Act, 1967, " revenues " has the same meaning as in section 218 of the Act of 1933 and " signature " includes a facsimile of a signature by whatever process reproduced.

1967 c. 9.

Power to raise money by bearer bonds.

4. In addition to any other method by which the Corporation may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

Power to raise money abroad.

5.—(1) Any method by which the Corporation are empowered by any enactment (including the last two foregoing sections) to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) (*a*) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury and subject to such conditions as the Treasury may impose.

(*b*) The enactments empowering the Corporation to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted where necessary to produce an amount which the Corporation consider appropriate having regard to all the circumstances of the transaction).

6.—(1) In its application to the investment by the Corporation under subsection (3) of section 21 of the Local Government Superannuation Act, 1937, of any moneys forming part of, but not for the time being required to meet payments out of, the superannuation fund, the Act of 1961 shall have effect as if— **Extension of power to invest superannuation fund moneys. 1937 c. 68.**

(*a*) the following paragraphs were included in Part III (Wider-Range Investments) of Schedule 1 to that Act:—

" 4. In any securities issued in any of the scheduled territories within the meaning of section 1 of the Exchange Control Act, 1947, or in Canada, the United States of America, Japan, the Netherlands Antilles, or in any of the following countries, namely, Austria, Belgium, Denmark, France, Holland, Italy, Luxembourg, Norway, Portugal, Spain, Sweden, Switzerland and Western Germany being securities which at the time of making the investment are quoted on any stock exchange in any of the said scheduled territories or any of the territories mentioned in this paragraph. **1947 c. 14.**

5. In the purchase, whether alone or jointly or in common with any other person, of immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands, or of any share or interest in such immovable property, including any interest in such immovable property comprised in a building agreement providing for the grant of a lease of such property contingent on the erection or completion of the building specified in such agreement.

6. In the advance of money upon the security of any legal estate or interest in immovable property comprised in a building agreement as specified in paragraph 5 of this Part and in any such case whether the security be taken by a separate and distinct mortgage or security made exclusively to the Corporation, or by a mortgage or security made jointly to the Corporation and any other person.";

(*b*) in Part IV (Supplemental) of the said schedule—

(i) in paragraph 1 there were inserted after the word " schedule " the words " other than those mentioned in paragraph 4 of the said Part III ";

(ii) after paragraph 2 there were inserted the following paragraph:—

" 2A. The securities mentioned in paragraph 4 of Part III of this Schedule do not include shares or debenture stock not fully paid up (except shares or debenture stock which, by the terms of issue, are required to be fully paid up within nine months of the date of issue)." ;

(iii) sub-paragraph (*a*) of paragraph 3 were omitted and the following were substituted for sub-paragraph (*b*) of the said paragraph 3:—

" (*b*) shares or debenture stock of an incorporated company which has not paid a dividend on its ordinary stock or shares for each of the five years immediately preceding the date of investment, or if the company has been incorporated or registered or has been trading for less than five years before that date unless—

(i) the Company has paid such a dividend on its ordinary stock or shares for each of the years since incorporation or registration or commencement of trading as the case may be; or

(ii) in the case of a company which has not been incorporated or registered or trading for at least one year before the date of investment but which has been formed by the amalgamation of other companies each of such companies has paid dividends on its ordinary stock or shares for each of the five years immediately preceding the date of the amalgamation.";

(iv) after paragraph 4 there were inserted the following paragraph :—

" 4A. The securities mentioned in paragraph 4 of Part III of this Schedule do not include shares or debentures of an incorporated company of which the total issued and paid-up share capital is less than one million pounds sterling or its equivalent in any foreign currency."

(2) (*a*) Notwithstanding anything in the Act of 1961, the Corporation may invest any moneys referred to in subsection (1) of this section in any manner specified in Part III of Schedule 1 to the Act of 1961, as amended by this section, and may also from time to time vary any such investments:

Provided that—

(i) no such moneys shall be so invested at any time when the value of all the investments made in the manner specified in the said Part III as so amended equals or exceeds three-quarters of the total value of the said superannuation fund; and

(ii) no such moneys so invested in the manner specified in paragraphs 5 and 6 of the said Part III as so amended shall equal or exceed one-quarter of the total value of the said superannuation fund.

(*b*) For the purposes of this subsection, the value of any investment belonging to the superannuation fund shall be deemed to be the value of the investment at the time at which it was made.

(3) In this section—

"the Act of 1961" means the Trustee Investments Act, 1961; 1961 c. 62.

"the superannuation fund" means the superannuation fund maintained by the Corporation under the Local Government Superannuation Acts, 1937 to 1953.

Power to assist industry, etc.

7.—(1) The Corporation may, if requested so to do by any person—

(*a*) who is the owner or intended owner or lessee or intended lessee of any land in the borough; or

(*b*) who has purchased or leased or intends to purchase or take on lease from the Corporation any land (whether within or outside the borough);

being in either case land upon which an industrial building is built or is intended to be built, extended or improved, carry out any work required in relation to the preparation or improvement of the site for that building or for the provision or improvement of services or facilities on which any trade or business carried on or intended to be carried on in such building depends, and may make grants or loans towards the cost of such works or of the provision or improvement of such services or facilities or both:

Provided that nothing in this section shall authorise the Corporation to carry out works for the provision or improvement of services which it is the function of statutory undertakers to provide or improve.

(2) Section 14 (Loans for erection &c. of buildings) of the Bolton Corporation Act, 1949, shall have effect as if the following subsection were substituted for subsection (1) thereof:— 1949 c. xliii.

"(1) The Corporation may advance money to—

(*a*) any person for the purpose of enabling or assisting him to purchase or lease any land in the borough; or

(*b*) the owner, purchaser or lessee of—

(i) any land in the borough; or

(ii) any land (whether within or outside the borough) acquired from or leased by the Corporation;

for the purpose of enabling or assisting him to build on such land or to extend or improve any existing building on such land or to execute on or adjacent to such land any works which the Corporation could require him to execute by virtue of any enactment:

Provided that any such advance shall not exceed nine-tenths of the amount which in the opinion of the Corporation will be the market value of the interest of the borrower in the land after the purpose for which the advance is made has been effected."

Electronic or mechanical equipment.

8. At any time after the Corporation have provided any electronic or mechanical accounting or calculating equipment for the purposes of any of their work they may by agreement with any other person use or permit that other person to use the said equipment for the purposes of that other person and they may make such charges as may be agreed for the use of the said equipment.

Saving for exchange control.

1947 c. 14.

9. It shall not be lawful to exercise the powers conferred by any of the provisions of this Act except in compliance with the Exchange Control Act, 1947.

Saving for powers of Treasury.

1946 c. 58.

10. It shall not be lawful to exercise the powers of borrowing conferred by the foregoing provisions of this Act except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

Costs of Act.

11.—(1) The costs, charges and expenses preliminary to, and of and incidental to, the preparing, applying for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Corporation out of the general rate fund of the borough or out of moneys to be borrowed under this Act.

(2) The Corporation may borrow, without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(3) The Corporation shall repay the sums borrowed under the foregoing subsection within ten years from the date of borrowing.

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CHAPTER xi

ARRANGEMENT OF SECTIONS

Section